



## Desktop License

A desktop license permits the installation of a font on a computer for use in desktop publishing (DTP) software. The license is determined by the number of users who have the font installed. Our desktop license also permits logo usage in vectorized environments.

**§A: The Parties**

§B: General Terms

§C: Desktop EULA  
Terms

§D: Definitions

§E: Contact

# SECTION A: THE PARTIES

This agreement is between you, the user, (“You” or the “Licensee”)

AND

**Font Club Belgica** (a partnership of TypeMyType and Studio Dries Wiewauters)

TypeMyType (BE0842.623.360)

Studio Dries Wiewauters (BE0843.790.924)

who are registered at:

Halvemaanstraat 40  
9040 Sint-Amandsberg  
Ghent  
Belgium

Emiel Maeyensstraat 25  
9040 Sint-Amandsberg  
Ghent  
Belgium

By downloading and installing the Font Software distributed by Font Club Belgica, you automatically agree and are bound under jurisdiction and courts of Belgium to the terms below:

## SECTION B: GENERAL TERMS

### **B-01 → ACKNOWLEDGEMENT**

You acknowledge that you have thoroughly read and understood all the terms of this agreement. This document supersedes any prior agreements, whether oral or written, between Font Club Belgica and the Licensee. No changes to this agreement will be accepted unless expressly made in writing by Font Club Belgica.

Font Club Belgica reserves the right to modify or amend this agreement, or the End User License Agreement (EULA), at any time and without prior notice.

### **B-02 → IP OWNERSHIP**

You acknowledge that the Font Software, along with any other intellectual property or documents licensed under this EULA (Licensed IP), are the property of Font Club Belgica and their licensors. This EULA does not transfer ownership of any intellectual property rights to the Licensee. You acknowledge that you have no rights to the Licensed IP, except for the right to use them as permitted under this EULA.

You acknowledge that you do not have the right to access the Licensed IP provided under this EULA in source code form.

### **B-03 → NO LEASE, SUBLICENSING, ETC**

The Licensee may NOT sell, lease, sublicense, or otherwise transfer or assign any rights, duties, or obligations under this agreement, in whole or in part, to any person or third party, including but not limited to, through a merger. Any breach of this provision will result in the immediate termination of the EULA, requiring you to delete all copies and destroy all materials (in any form, digital or physical) containing the materials or rights licensed under this EULA, including the Licensed IP.

Font Club Belgica licenses the Licensed IP for internal use by the Licensee's business only. The Licensee agrees not to use the Licensed IP for any resale purposes.

### **B-04 → FEES**

Upon receipt of the full payment of the applicable license fee by Font Club Belgica,

you will become a licensed user. The fees do not include any gross receipts, excise, import, export, value-added, or similar taxes. The Licensee is responsible for paying any applicable or additional fees and costs beyond the license fee.

#### **B-05 → NO MODIFICATIONS**

Renaming, adapting, modifying characteristics, creating derivative works, reverse engineering, disassembling, decompiling, or altering the font format of the supplied variant or Licensed IP is strictly prohibited. You also agree not to transmit any electronic documents or software to any party intending to edit, transform, alter, enhance, merge, combine, or otherwise modify or remove the Licensed IP from any document. All modifications to the Licensed IP are strictly prohibited and may only be made by Font Club Belgica. Please contact Font Club Belgica directly to discuss any specific requirements.

#### **B-06 → REFUNDS**

Font Club Belgica does not provide refunds; all sales are final. Refunds may only be considered if the files are proven to be defective, following a thorough period of technical support and evaluation.

#### **B-07 → LICENSE NON-TRANSFERABLE**

All licenses are non-transferable and are granted solely to the named Licensee upon entering into this EULA. You may not transfer or sublicense the license or the associated Licensed IP to any other parties, clients, affiliates, entities, or collaborators.

Any additional parties using the Licensed IP must obtain their own appropriate license before installing or using the Licensed IP.

Font Club Belgica permits users to purchase a license to use the Licensed IP on behalf of clients, collaborators, businesses, and affiliates. However, each entity must have its own license, in accordance with the required usage and licensing tiers.

#### **B-08 → A SINGULAR ORGANISATION**

The license is granted for use by a single organization, entity, person, or individual.

Multi-user licenses can be used across multiple locations, provided that all users are employed by the same organization, company, or entity.

The license is valid for only 1 (one) company, for example a Limited (LTD), Inc GmbH, PTY, PLC, CIA, Corp., LLC, S.A., ApS, ASA or equivalent recognised company title / suffix within your relevant jurisdiction.

### **B-09 → VIRUSES**

While Font Club Belgica has taken reasonable measures to ensure that the Licensed IP is free from viruses or malware, Font Club Belgica accepts no responsibility for any damage to the user's hardware, software, or loss of income that may result. Installation of the Licensed IP is carried out at the Licensee's own risk, and Font Club Belgica will not be held liable for any such issues.

The Licensee acknowledges that the Licensed IP has not been developed to address the Licensee's specific needs or requirements, including but not limited to cyber-security needs. It is the Licensee's responsibility to ensure that the Licensed IP meets their particular requirements.

### **B-10 → LICENSE RESTRICTIONS**

It is the sole responsibility of the designated Licensee to communicate all license restrictions, extents, and limitations within their organization, entity, or business. This includes documenting and informing relevant parties about limitations on the number of users, page views per month, weights and styles, and the duration of the license.

### **B-11 → JURISDICTION**

This agreement and all relations, disputes, claims and other matters arising hereunder (including non-contractual disputes or claims) shall be governed exclusively by, and construed exclusively in accordance with, the laws of Belgium, without regard to its conflicts of law provisions. The courts located in Belgium shall have exclusive jurisdiction to adjudicate any dispute or claim arising out of or relating to this agreement (including non-contractual disputes or claims). Each party hereby consents to the jurisdiction of such courts and agrees NOT to

assert the defenses of lack of personal jurisdiction, improper venue or forum non conveniens in any such action brought under such court.

#### **B-12 → MAJOR BREACH OF LICENSE**

A material breach of any of these terms will entitle Font Club Belgica to terminate the EULA immediately upon notice. In such a case, Font Club Belgica will revoke the license for the Licensed IP without providing a refund. Following termination, you must destroy all copies of the Licensed IP, including backup or archival copies stored on external media (e.g., an external hard drive used for backups).

If you continue to use the Licensed IP after receiving notice of termination, you will be required to pay the full license fees (in EURO €) for its continued use.

You must pay the required sums within 7 (seven) days and provide any information requested by Font Club Belgica, including but not limited to Google Analytics data on page views per month, application (iOS, Android, and other platforms) downloads, and the number of users utilizing the Licensed IP on computers and/or devices.

Font Club Belgica reserves the right to charge for time, expenses, and legal work undertaken as it deems appropriate.

#### **B-13 → MINOR BREACH OF LICENSE**

When purchasing a license for the Licensed IP, Font Club Belgica relies on the Licensee to accurately report their usage details (such as the number of computers on which the software is installed, page views per month, or application downloads) and to purchase the appropriate license based on their actual usage requirements.

The Licensee must ensure that they do not exceed the tiers and limitations specified in the license for the Licensed IP. If the Licensee anticipates breaching these tiers and limitations, they should proactively purchase an upgraded license from Font Club Belgica. This can be arranged by contacting Font Club Belgica directly.

Font Club Belgica may occasionally contact companies or brands that are suspected of exceeding the specified quotas. We reserve the right to do so as part of our commitment to safeguarding our intellectual property assets.

If it is determined that the Licensee has breached the usage quotas specified in their license, the Licensee agrees to rectify the breach by purchasing the appropriate license within 7 (seven) days of receiving written notice via email or post.

If the breach is not corrected, Font Club Belgica reserves the right to terminate the rights granted under this EULA. The Licensee will then be required to ensure that all materials (print, digital, application, broadcasting, physical) in their possession or control are destroyed within 14 (fourteen) days.

#### **B-14 → WARRANTY**

Font Club Belgica warrants that the Licensed IP will function correctly for 30 (thirty) days after purchase. This warranty does not apply if the defect results from unauthorized modifications by the Licensee or from a breach of this EULA by the Licensee.

While the Licensed IP is designed to ensure high compatibility with external software, Font Club Belgica cannot guarantee compliance or ongoing compatibility with external hardware and software from other manufacturers.

Font Club Belgica cannot guarantee that the Licensed IP is error-free and accepts no responsibility or liability for any errors in the Licensed IP licensed or distributed by Font Club Belgica. Please ensure that you are using the latest versions of our Licensed IP, downloaded from official channels.

#### **B-15 → PROOF OF LICENSING**

Font Club Belgica reserves the right to request a copy or proof of this license at any time. Please ensure you retain copies of all receipts (such as the purchase email automatically generated upon transaction completion) for the licenses you have purchased.

#### **B-16 → VAT (VALUE ADDED TAX)**

Font Club Belgica, TypeMyType, and Studio Dries Wiewauters are VAT-registered in Belgium. If you are located in Belgium, the prevailing VAT rate will be applied to all applicable purchases. If you are within the European Union and provide a valid VAT

number on our e-commerce platform or present it for manual invoicing and bank transfer, you can avoid the VAT charge. If you do not have a VAT number and are within the EU, the prevailing VAT rate for your location will be applied. For purchases made outside the EU, VAT will not be charged.

Please contact us if you have any questions related to VAT or tax.

#### **B-17 → PURCHASING CURRENCY**

As a European-registered limited company, Font Club Belgica operates in euros (€ EUR). All transactions through our e-commerce platform will be conducted in this currency.

#### **B-18 → USAGE OF THE WORD «INCLUDING»**

The term 'worldwide' used throughout this agreement does not limit the binding nature of the agreement to the listed mediums or usages, nor to the set limitations defined herein. The scope and application are at the discretion of Font Club Belgica.

#### **B-19 → LIMITATION OF LIABILITY**

Font Club Belgica shall not be liable under any circumstances for any losses suffered by the Licensee, or any person claiming through the Licensee, whether arising in contract, tort (including negligence), or otherwise, including but not limited to the following categories:

- Loss of profits;
- Loss of anticipated savings;
- Loss of business opportunity;
- Loss of goodwill;
- Loss or corruption of data;
- Loss of use (in each case whether direct or indirect);
- Special, indirect, incidental or consequential loss or damages, even if Font Club Belgica were aware of the circumstances

The total liability of Font Club Belgica, whether arising in contract, warranty, tort (including negligence), product liability, or any other form of liability in connection



with this Agreement or any related agreements, including the use or inability to use the Licensed IP, shall not exceed the total Fees paid under the EULA during the twelve (12) months immediately preceding the claim.

The Licensee agrees that, in entering into this EULA, they did not rely on any representations, whether written or oral, from any person other than those expressly set out in this EULA. If the Licensee did rely on any such representations not expressly included in this EULA, they acknowledge that they have no remedy for such representations, and Font Club Belgica shall not be liable for any circumstances other than those outlined in this EULA.

These exclusions apply to the fullest extent permitted by law. However, Font Club Belgica does not exclude liability for:

- Death or personal injury caused by negligence of Font Club Belgica, its officers, employees, contractors, or agents;
- Fraud or fraudulent misrepresentation;
- Any other liability that cannot be excluded by law.

#### **B-20 → AUTHORIZED TOOLS**

All outputs rendered, in any format, from Authorized Tools—including derivatives, adaptations, and modifications of the font software, in whole or in part—will remain fully subject to the license agreements applicable to your use of the Licensed IP.

# SECTION C: DESKTOP EULA TERMS

## C-01 → LICENSE EXTENT

The Desktop License is issued for a specific number of users. Installation and use of the Font Software are limited to the number of users disclosed at the time of purchase. It is the Licensee's responsibility to ensure compliance with these tiers and limitations.

## C-02 → COMPANY / ENTITY

Each license is assigned to a single legal entity, such as a sole trader, company, corporation, limited liability partnership, or similar. The rights and obligations under this license may not be reassigned, transferred, sold, or otherwise passed on.

Users may be located in multiple geographical locations, provided that they all work for the same legal entity.

If you are a branding company, design consultancy, advertising agency, or similar entity purchasing this license, the ultimate end user must also obtain a license appropriate for their intended use of the Font Software. This license does not cover use by temporary employees, independent contractors, or freelancers. In such cases, both the employer and the end user are required to purchase a separate license.

## C-03 → SERVER USAGE

The Font Software is strictly limited to the number of users licensed under this agreement. This refers to the total number of users who may use the Font Software, not just those who may have access at any given time. The Font Software may be used on file or data distribution servers to allow employees to access it from a central location.

## C-04 → USAGE

A Desktop License permits the installation of the Font Software on a desktop computer or personal computing device. This license allows the Font Software to be used within software applications (such as word processing and desktop publishing

programs] for creating printed and marketing materials, including but not limited to logos, wordmarks, business cards, letterheads, books, billboards, apparel, social media images, etc. It also covers the creation of rasterized static images (e.g., GIF, JPG, PNG).

#### **C-05 → UNPERMITTED USAGE**

Embedding the Font Software into other software or devices, or using it in any form beyond the agreed usage on desktop/personal computing devices, is not permitted under this Desktop License. Such use requires the purchase of a separate license tailored to the specific medium and usage. For clarification, please consult the Font Club Belgica website or contact us directly.

#### **C-06 → PASSING FILES TO THIRD-PARTY SUPPLIERS**

When producing materials involving third-party suppliers, contractors, manufacturers, or personnel, Font Club Belgica permits the transfer of the Licensed Font Software to one [☞](#) service provider for previewing and production purposes only.

Service personnel, such as printers or production houses, may install the Font Software on one [☞](#) local desktop computer to produce the materials but must not alter or edit any live or non-rasterized text within the files or artwork.

If editing, artwork modification, or adaptation is required, the third-party supplier, contractor, manufacturer, or personnel must obtain the appropriate license.

For third-party suppliers, contractors, or manufacturers working on designs for websites or web-based applications, both a Desktop License and an appropriate Web License must be purchased for use within desktop or design software programs.

#### **C-07 → BACKUP COPIES**

Licensees are permitted to create a backup copy of the Font Software for archival and storage purposes. This backup should be stored on no more than one [☞](#) medium (e.g., a server backup or cloud-based backup system) at any one time.

## **C-08 → FILE FORMATS**

The Desktop License provides Font Software files in .OTF and variable .TTF formats (if selected during the licensing process). These files may not be converted or processed through any mechanism or software that alters or modifies their format (e.g., converting .OTF to web formats such as .WOFF, .WOFF2, .EOT, or .TTF).

The supplied .OTF and/or .TTF files may not be used for embedding or rendering live text via the @font-face CSS declaration, in web-based environments, or any other dynamic online software or programs.

## **C-09 → FONT SOFTWARE PROTECTION**

As a Licensee, you agree to take all reasonable measures to protect the Font Software from theft, unauthorized transfer, redistribution, or access by unlicensed or potentially malicious parties.

## **C-10 → UPGRADING**

The Desktop License is based on the number of users as outlined in C-01 and C-02. If you exceed the specified number of users within your purchased license, you must upgrade your license within 3 (three) working days. The upgrade cost will be the difference between the previously acquired license and the next tier. Please contact Font Club Belgica directly to arrange the upgrade.

## SECTION D: DEFINITIONS

### **D-01 → CAMEL CASING**

A typographical convention where the initial letter of the second element in a closed compound word is capitalized.

Example: *CamelCasing*

### **D-02 → DOWNLOADS**

Unique individual requests to save an application incorporating Licensed Font Software to a device from a website or platform.

### **D-03 → EMBEDDING**

The integration of Font Software within another software application.

Example: *A web browser, an application.*

### **D-04 → END USER**

The individual who utilizes the Font Software.

### **D-05 → EULA (END USER LICENSE AGREEMENT)**

This End User License Agreement.

### **D-06 → EXTERNAL AFFILIATES / COMPANIES / AGENCIES**

All companies, agencies, individuals, entities, or external contractors that are not employees of the licensed company and are registered as separate entities not within the licensed company.

### **D-07 → @FONT-FACE**

A CSS rule that allows Font Software to be downloaded from a web server to render a web page.

### **D-08 → FONT SOFTWARE**

Font Software refers to the software or instructions licensed under this EULA that,

when used on an appropriate device or devices, generates typeface and typographic designs and ornaments. It includes the typeface, typographic designs, bitmap representations created by or derived from the Font Software, and all related upgrades, updates, modifications, copies, and documentation.

**D-09 → FOREX**

Also known as foreign exchange, FX, or currency trading, Forex is a decentralized global market where world currencies are traded.

**D-10 → KEBAB-CASING**

Text formatted in all lowercase with hyphens separating words.

Example: *looks-like-this*

**D-11 → PAGE VIEWS**

A single instance of an Internet user visiting a particular page on a website.

**D-13 → PERPETUAL**

Indefinite duration.

**D-14 → RASTERIZED FONT SOFTWARE**

The process of converting text from a vector format (such as TrueType or OpenType fonts) to a raster or bitmap format.

**D-15 → SUBDOMAIN**

An Internet domain that is part of a primary domain.

Example: *http://beta.web.com*

**D-16 → SELF-HOSTING**

The practice of uploading Font Software to a web server controlled by the licensing party to serve a website.

**D-17 → STANDARD ('STD') AND PROFESSIONAL ('PRO')**

Abbreviations for our Standard ('STD') and Professional ('PRO') versions of Font

Software. Details of the variations in content, features, and language support are available on our website.

#### **D-18 → TERMS**

This EULA is effective from the date both parties enter into the agreement and all fees have been paid, and will continue indefinitely unless terminated in accordance with the terms of this EULA.

#### **D-19 → TRANSACTION DATE**

The date on which a trade between Font Club Belgica and the Licensee occurs, and the financial amount is transferred to the nominated AS & EH Partnership bank account or e-commerce payment method. This date marks the official start of the license.

#### **D-20 → AUTHORIZED TOOLS**

Software programs developed, maintained, and distributed through official Font Club Belgica channels that may adapt, manipulate, modify, or change the font software from its full, complete versions.

#### **D-21 → OFFICIAL CHANNELS**

Any direct and certified delivery of Font Software by Font Club Belgica, including delivery from an authorized representative, via an @fontclubbelgica.xyz email address, or direct download from Font Club Belgica's websites and e-commerce stores.

## SECTION E: CONTACT

|           |                                                                |                                                                    |
|-----------|----------------------------------------------------------------|--------------------------------------------------------------------|
| ADDRESS   | Halvemaanstraat 40<br>9040 Sint-Amandsberg<br>Ghent<br>Belgium | Emiel Maeyensstraat 25<br>9040 Sint-Amandsberg<br>Ghent<br>Belgium |
| TELEPHONE | +32(0)474 01 23 45                                             |                                                                    |
| EMAIL     | licensing@fontclubbelgica.xyz                                  |                                                                    |
| INSTAGRAM | @fontclubbelgica                                               |                                                                    |